

		agreed upon by Plaintiff and Dealer ('Purchase Price')."].) Although the Separate Statement indicates that Plaintiff purchased RISCs from Defendant Ethos, Plaintiff submits no evidence that it paid the agreed-upon purchase price for the RISCs. The memorandum of points and authorities in support of the motion states that Plaintiff purchased the RISCs for the vehicles in question. (See Pltf.'s Mem. of P.s&A.s in Supp. of Pltf.'s Mot for Summ. J., or in the Alternative, Summ. Adj. at p. 13:13-14.) However, Plaintiff does not provide any evidence to support this contention. Instead, Plaintiff only cites to evidence showing that consumers purchased the subject vehicles from Defendant Ethos. (See Separate Statement, Undisputed Material Facts Numbers 12, 21,29, 36, 43.) It is true that neither Defendant Ethos nor Defendant Hayashi filed an opposition to the motion or otherwise responded to the motion. However, as the moving party, Plaintiff bears the initial burden of making a prima facie showing as to each element of the claim. "If the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial.'" (<i>Saelzler v. Advanced Group 400, supra</i>, 25 Cal.4th at p. 780, quoting <i>Leslie G. v. Perry & Associates, supra</i>, 43 Cal.App.4th at p. 482.) Similarly, Plaintiff failed to provide evidence that it performed or was excused from performing its material obligations under the Guaranty. Therefore, the court must deny summary adjudication as to the 1st and 2nd Causes of Action. And because there is a triable issue of material fact as to some of the causes of action, the court cannot grant summary judgment. The court clerk shall give notice of this ruling.
11	Ramirez vs. City of Santa Ana 30-2022-01287702	<u>Motion for Protective Order</u> Defendant City of Santa Ana's Ex Parte Application for A Protective Order is DENIED without prejudice.

		Plaintiff Rita Ramirez’s evidentiary objection to the Declaration of Kevin J. Hernandez in Support of Defendant City of Santa Ana’s Ex Parte Application for A Protective Order is SUSTAINED as to Objection Number 1. <u>Pending Motion</u> Defendant City of Santa Ana moves for a protective order prohibiting Counsel for Plaintiff Rita Ramirez from communication with employees of Defendant and for an award of monetary sanctions. <u>Standard</u> Courts have the authority to “provide for the orderly conduct of proceedings before it, or its officers” and “[t]o control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every matter pertaining thereto.” (Code Civ. Proc., § 128, subd.s (a)(3), (a)(5).) This power includes the ability to order that counsel abide the rules of professional ethics. California Rule of Professional Conduct Rule 4.2 provides: (a) In representing a client, a lawyer shall not communicate directly or indirectly about the subject of the representation with a person* the lawyer knows* to be represented by another lawyer in the matter, unless the lawyer has the consent of the other lawyer. (b) In the case of a represented corporation, partnership, association, or other private or governmental organization, this rule prohibits communications with: (1) A current officer, director, partner,*or managing agent of the organization; or (2) A current employee, member, agent, or other constituent of the organization, if the subject of the communication is any act or omission of such person* in connection with the matter which may be binding upon or imputed to the
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		organization for purposes of civil or criminal liability. (c) This rule shall not prohibit: (1) communications with a public official, board, committee, or body; or (2) communications otherwise authorized by law or a court order. (d) For purposes of this rule: (1) "Managing agent" means an employee, member, agent, or other constituent of an organization with substantial* discretionary authority over decisions that determine organizational policy. (2) "Public official" means a public officer of the United States government, or of a state, county, city, town, political subdivision, or other governmental organization, with the comparable decision-making authority and responsibilities as the organizational constituents described in paragraph (b)(1). . . . Comment 5: This rule does not prohibit communications initiated by a represented person* seeking advice or representation from an independent lawyer of the person's* choice. Here, Defendant contends that Plaintiff's Counsel violated Rule 4.2 when he had communications with Deputy Chief Chuck Elms, who is an employee of Defendant, regarding the subject of this legal action. The only evidence that Defendant provides in support of this contention is the declaration of Defendant's Counsel, who states that "[o]n April 2, 2025, Deputy Chief Chuck Elms contacted me and advised me that Larry Lennemann contacted him directly and attempted to schedule a meeting with Mr. Elms. Specifically, Mr. Elms stated Mr. Lennemann texted him and asked him to schedule a meeting to discuss the trial in this matter." (See Decl. of Kevin J. Hernandez in Supp. of Def.'s Ex Parte Application for A Protective Order, ¶ 4.) However, these statements are hearsay and do not constitute admissible evidence. (See Evid.
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		Code, § 1200, <i>et. seq.</i>) Therefore, Defendant has not met its burden as the moving party to show that it is entitled to the requested protective order. The court will deny the motion without prejudice. Plaintiff shall give notice of this ruling.
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